



INDUSTRIAL DEVELOPMENT BANK OF PAKISTAN (REORGANIZATION AND CONVERSION) ORDINANCE, 2009.

Last Updated: 2009-11-26

Contents

	PREAMBLE
1	SHORT TITLE, EXTENT AND COMMENCEMENT
2	DEFINITIONS
3	ESTABLISHMENT OF THE COMPANY, ETC
4	COMPANY TO BE DEEMED A BANKING COMPANY

**INDUSTRIAL DEVELOPMENT BANK OF PAKISTAN (REORGANIZATION AND
CONVERSION) ORDINANCE, 2009.**

ORDINANCE NO. XXXVIII OF 2009

An Ordinance to provide for the re-organization and Conversion of the Industrial Development Bank of Pakistan into a public limited company

WHEREAS, it is expedient to provide for re-organization and conversion of the Industrial Development Bank of Pakistan into a public limited company incorporated under the Companies Ordinance, 1984 (XLVII of 1984), and for matters connected therewith or incidental thereto;

AND WHEREAS the National Assembly is not in session and the circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of the Islamic Republic of Pakistan, the President is pleased to make and promulgate the following Ordinance:-

1. Short title, extent and commencement.-(1) This Ordinance may be called the Industrial Development Bank of Pakistan (Reorganization and Conversion) Ordinance, 2009.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once and shall be deemed to have taken effect on and from the 17th September, 2007.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,-

- (a) "assets" means rights and powers of every description and includes all properties, movable or immovable, tangible or intangible, mortgages, charges and claims in the name of the IDBP, as the case may be;
 - (b) "company" means the Industrial Development Bank Limited to be established and incorporated in accordance with section 3;
 - (c) "contracts" means all contracts, agreements, bonds guarantees, indemnities, representations, obligations, undertakings and other legal documents and instruments of every description executed by or on behalf of IDBP, as the case may be, including employment, investment, sales and financial contracts with whomsoever;
-

- (d) "effective date" means the date specified in the Order issued under section 5;
- (e) "IDBP" means the Industrial Development Bank of Pakistan established under the Industrial Development Bank of Pakistan Ordinance, 1961 (XXXI of 1961);
- (f) "liabilities" means all liabilities lawfully incurred by IDBP, as the case may be, and includes duties and obligations of every kind imposed thereon;
- (g) "order" means an Order made by the Federal Government under subsection (1) of section 5;
- (h) "proceedings" includes any suit, arbitration or other legal or administrative proceedings, applications, appeals, awards, reviews or revisions filed or pending;
- (i) "rules" means the rules made under this Ordinance;
- (j) "transfer" means the transfer of assets, contracts, liabilities, proceedings and undertakings of IDBP, as the case may be, to the company; and
- (k) "undertakings" includes all projects, ventures and any other operations undertaken by IDBP, as the case may be, individually or collectively in collaboration with some other person.

3. Establishment of the Company, etc.-(1) As soon as may be, after the commencement of this Ordinance, the Federal Government shall establish a Company to be known as the Industrial Development Bank Limited, limited by shares and cause it to be incorporated under the Companies Ordinance, 1984 (XLVII of 1984), with the principal object of taking over the business, functions, contracts, proceedings, undertakings, assets and liabilities of IDBP.

(2) No stamp duty or any other charges shall be payable by the Company under any law for the time being in force for the transfer and vesting of the assets, contracts, liabilities, proceedings or undertakings of IDBP to the company or any shares or securities issued in favor of the shareholders or financiers of IDBP by the Company.

4. Company to be deemed a banking company.-(1) The Company shall be deemed to be a banking company for the purposes of the State Bank of Pakistan Act, 1956 (XXXIII of 1956), the Banking Companies Ordinance, 1962 (LVII of 1962) and any other law for the time being in force relating to banking companies until such time that the license is granted to the Company under subsection (2).

(2) Without prejudice to the provisions of subsection (1), the company shall apply to the State Bank of Pakistan, for a license for permitting it to carry on the business of banking in Pakistan in accordance with the provisions of section 27 of Banking Companies Ordinance, 1962 (LVII of 1962), through the existing branches of IDBP.

